

**SHARED TECHNOLOGY SERVICES AGREEMENT BETWEEN THE  
MADISON LOCAL SCHOOL DISTRICT BOARD OF EDUCATION AND  
BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT BOARD OF  
EDUCATION**

This Shared Services Agreement (“Agreement”) is entered into between the Madison Local School District Board of Education (“Madison”), 1956 Red Bird Road, Madison, Ohio 44057, and the Brecksville-Broadview Heights City School District Board of Education (“Brecksville-Broadview Heights”), 6638 Mill Road, Brecksville, Ohio 44141 (collectively, “Parties”).

**WHEREAS**, Madison is a board of education that provides high quality education to students within its designated territory; and

**WHEREAS**, Brecksville-Broadview Heights is a board of education that provides high quality education to students within its designated territory; and

**WHEREAS**, the Parties believe that their respective entities could achieve efficiencies and otherwise benefit from sharing certain technology services between them; and

**WHEREAS**, the Parties desire to formalize the shared delivery of technology services pursuant to this Agreement.

**NOW THEREFORE**, in consideration of the mutual promises and obligations contained herein and other good and valuable consideration, the sufficiency of which is hereby acknowledged, the Parties agree as follows:

**1. TECHNOLOGY SERVICES AND PERSONNEL**

- a. **Technology Services:** Madison shall provide Brecksville-Broadview Heights with sufficient personnel to perform the following technology services (“Technology Services”):
- (1) Maintain an effective wired and wireless network
  - (2) Manage deployment of new technology
  - (3) Recommend programs that improve efficiency and use of hardware
  - (4) Establish successful partnerships with high quality vendors with effective cost savings
  - (5) Communicate current status of the network and department to the Superintendent and Treasurer or his/her designee
  - (6) Assist in establishing goals for an effective and efficient long-term hardware life cycle management
  - (7) Provide key technology communications with respective A-site

- (8) Assist with grant proposals as they apply to technology
  - (9) Google account/admin console management
  - (10) Management of network operations center
  - (11) Network operations center project management
  - (12) Specify technical requirement for Erate projects
  - (13) Work with District's Erate consultant to gather information necessary for Erate form 470 and 471 filing.
  - (14) Manage Erate project deployments
  - (15) Any other technology service reasonably related to providing any of the above items 1-14, as requested by Brecksville-Broadview Heights
- b. **Employees:** All technology personnel provided by Madison pursuant to this Agreement shall remain Madison employees ("Employees").
- (1) Madison shall pay the employees' salary, retirement, health care benefits, Medicare, mileage, professional meeting expenses, membership dues, Worker's Compensation, and other expenses and/or benefits that may be available to the employees.
  - (2) Madison shall evaluate the Employees pursuant to applicable statutes and regulations and any applicable policies, guidelines, and collective bargaining agreements. Upon request, such evaluation(s) shall be timely provided to Brecksville-Broadview Heights.
  - (3) If Brecksville-Broadview Heights determines that any Employee provided by Madison is incompetent, has engaged in misconduct, or has been negligent, Brecksville-Broadview Heights may require such Employee to leave Brecksville-Broadview Heights's premises and will notify Madison immediately. Upon Brecksville-Broadview Heights's request and approval, Madison must replace removed Employee in order to fully perform Technology Services.
- c. **Facilities and Equipment:** During the term of this Agreement, Madison personnel may enter Board facilities and access Brecksville-Broadview Heights equipment in order to perform the Technology Services, in the manner prescribed by Brecksville-Broadview Heights. However, Madison personnel shall enter Brecksville-Broadview Heights facilities and use Brecksville-Broadview Heights equipment solely for those purposes, which are consistent with the Technology Services under this Agreement. Brecksville-Broadview Heights disclaims any warranty, guaranty, or representation with respect to the nature and condition of the facilities and equipment.
- d. **Materials and Supplies:** Brecksville-Broadview Heights shall provide the software, equipment, systems, materials, and supplies necessary for

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Madison to perform the Technology Services. Madison shall advise Brecksville-Broadview Heights regarding any additional software, equipment, systems, materials and supplies that may be necessary for Madison to perform the Technology Services. All software, equipment, and systems purchased by Brecksville-Broadview Heights or utilized by Madison under this Agreement shall remain the property of Brecksville-Broadview Heights.

- e. **Access and Use:** Brecksville-Broadview Heights shall provide Madison personnel with the necessary access, passwords, and codes to provide the Technology Services.
- f. **Cooperation:** To the extent Brecksville-Broadview Heights employs technology personnel, such personnel shall cooperate with Madison in order to assist in implementing the Technology Services. However, under no circumstances shall Madison Employees manage, direct, discipline, transfer, suspend, lay off, recall, promote, discharge, assign, reward, evaluate, or otherwise supervise Brecksville-Broadview Heights personnel.

## 2. PAYMENT

During the term of the Agreement, Brecksville-Broadview Heights shall pay Madison \$5,625.00 by the first day of every month for a total of \$67,500.00 per contract year (June 1-May 31). Payments tendered by Brecksville-Broadview Heights under this Agreement shall be made payable to the “Madison Local School District” and delivered to the Madison Local School District, Office of the Treasurer, 1956 Red Bird Road, Madison, Ohio 44057.

## 3. TERM

This Agreement shall begin on June 1, 2020, and shall remain in effect, unless one of the Parties terminates the agreement according to Section 4 of the Agreement.

## 4. TERMINATION

- a. **Termination Without Reason:** Either Brecksville-Broadview Heights or Madison may terminate this Agreement, for any reason, by providing written notice of termination 30 days prior to the date of intended termination. Any outstanding balance due on the date of termination shall be made on a pro rata basis.
- b. **Termination For Non-Payment:** Failure to make payment on or before the first of every month shall constitute a breach of this Agreement and, unless waived, will result in the termination of the Agreement unless the breach is cured within fifteen (15) business days of the date of the breach.

## 5. CRIMINAL RECORDS CHECKS ON EMPLOYEES

Madison shall ensure that all applicable criminal records/background check laws and any hiring restriction imposed by those laws, including but not limited to those set forth in R.C. Chapter 3319, are adhered to and satisfied. An Employee with any disqualifying offense shall immediately be removed from Brecksville-Broadview Heights. Employees with a disqualifying offense that is subject to rehabilitation under R.C. Chapter 3319 and corresponding Ohio Administrative Code provisions must be approved by Brecksville-Broadview Heights in order to perform Technology Services pursuant to this Agreement.

## 6. CONFIDENTIALITY/EDUCATION AND STUDENT RECORDS

- a. The Parties acknowledge that in the course of performing their obligations under this Agreement, they may obtain certain confidential and proprietary information about the other Party, including student personally identifiable information which is designated as confidential under the Family Educational Rights and Privacy Act and Ohio law ("Confidential Information"). The Parties agree that they will only use Confidential Information of the other Parties in the performance of their obligations under this Agreement and that they will not, at any time during or following the term of this Agreement, divulge, disclose or communicate any Confidential Information to any other person, firm, corporation or organization or otherwise use the Confidential Information for any purpose whatsoever without the prior written consent of the disclosing Party.
- b. Confidential Information does not include information which is: (a) in the public domain other than by a breach of this Section on the part of the recipient; (b) rightfully received from a third party without any obligation of confidentiality; (c) rightfully known to the recipient without any limitation on use or disclosure prior to its receipt from the disclosing party; (d) independently developed by the recipient; or (e) disclosed pursuant to the order or requirement of a court, administrative agency or other government body.

## 7. RELATIONSHIP BETWEEN THE PARTIES

- a. **Separate Entities:** At all times, the relationship of the Parties shall be as separate entities.
- b. **Not a Joint Venture:** The Parties, under the authority of R.C. 9.482, intend for this Agreement to establish only a cost-sharing arrangement with regard to the provision of technology services. Nothing contained in this Agreement shall be deemed to be interpreted as a partnership or joint

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venture or any other arrangement whereby one of the Parties is authorized to act as an agent for another.

- c. **Employees:** Employees of the Parties shall remain employees of their respective employers and such employers shall have supervisory and all other responsibility for its respective employees.
- d. **Liability:** Each Party is liable for the conduct of its own employees, as well as for conduct done at the direction of its own employees.

#### 8. NO THIRD-PARTY BENEFICIARY

This Agreement is only for the benefit of the Parties as political subdivisions and shall not be construed as or deemed to operate as an agreement for the benefit of any third party or parties, and no third party or parties shall have a right of action or obtain any right to benefits or position of any kind for any reason whatsoever.

#### 9. ASSIGNMENT

The Parties shall not assign or otherwise transfer any of their interests, rights, or obligations in or under this Agreement without the prior written consent of the other Party.

#### 10. NON-SOLICITATION

During the term of this Agreement, Brecksville-Broadview Heights shall not, without the prior written consent of Madison, either directly or indirectly, on behalf of themselves or on behalf of others, solicit or attempt to solicit, divert or hire away any person employed in the Technology Department of the Madison Local School District.

#### 11. NOTICES

- a. **Notices:** All notices, requests, demands, and other communications required or permitted to be given under this Agreement shall be in writing and mailed postage prepaid by certified or registered mail to the appropriate address indicated below.

Madison: Madison Local School District  
c/o Treasurer  
1956 Red Bird Road  
Madison, Ohio 44057

Brecksville-Broadview Heights:  
Brecksville-Broadview Heights Local School District  
c/o Treasurer

6638 Mill Road  
Brecksville, Ohio 44141

- b. **Delivery:** All notices, requests, demands, and other communications shall be deemed to have been given at the time when delivered via registered or certified mail, postage prepaid, and addressed to the party at the address set forth above, or to such changed address as a party may have fixed by notice to the other party hereto; provided, however, that any change of notice of address shall be effective only upon receipt.

## 12. DISPUTES

Should a dispute arise regarding the terms or services rendered under this Agreement, the Parties agree they shall meet at a mutually beneficial time and location and attempt, in good faith, to resolve the dispute through discussion.

## 13. WAIVER

The failure of any party to insist on strict compliance with this Agreement, or to exercise any right or remedy hereunder, shall not constitute a waiver of any rights contained herein or estop any party from thereafter demanding full and complete compliance therewith, nor prevent any party from exercising any right or remedy in the future.

## 14. FORCE MAJEURE

No Party shall be deemed to be in breach or default of any provision of this Agreement by reason of a delay or failure in performance due to acts of God, acts of governments, wars, riots, strikes, accidents in transportation, or other causes beyond the control of the Parties.

## 15. AMENDMENT

No modifications, waiver, mutual termination, or amendment of this Agreement is effective unless made in writing and signed by representatives for each of the Participating Districts.

## 16. GOVERNING LAW

This Agreement shall be governed by and construed under the laws of the State of Ohio. Venue for any action regarding this Agreement shall be any court of competent jurisdiction located in Lake County, Ohio.

## 17. ENTIRE AGREEMENT

This Agreement constitutes the complete and exclusive Agreement between the Parties. No other promises or agreements of any kind have been made to cause the Parties to execute this Agreement.

#### 18. INSURANCE/RESPONSIBILITY

- a. **Limitation of Liability:** Each Party shall only be responsible for the payment of claims for loss, personal injury, death, property damage, or otherwise, arising out of any act or omission of their respective employees or agents in connection with the performance of the services for which they may be held liable under applicable law. Upon request, either Party will provide the other a certificate (or certificates) of insurance evidencing such coverage.
- b. **Insurance and Attorney Fees:** Each Party shall maintain at its sole expense adequate insurance or self-insurance coverage to satisfy its obligations under this Agreement. In the event a lawsuit is brought against a Party as a result of the provision of Technology Services under this Agreement, each Party shall each be responsible for its own attorney fees and costs associated with such litigation.
- c. **Immunity:** Nothing contained in this Agreement is intended to nullify, override, or otherwise limit either Party's immunities under Chapter 2744 of the Ohio Revised Code or any other limitations on liability provided under applicable law.

19. **EXECUTION IN COUNTERPARTS:** This Agreement may be executed in counterparts, each of which shall be deemed an original and both of which together shall constitute one Agreement. True and correct copies, including facsimile, electronic, or PDF copies of signed counterparts, may be used in place of originals for any purpose and shall have the same force and effect as an original.

IN WITNESS WHEREOF, the Parties hereto have set their hands.

MADISON LOCAL SCHOOL DISTRICT BOARD OF EDUCATION:

By \_\_\_\_\_  
President (In his/her official capacity only)      Date \_\_\_\_\_

And by \_\_\_\_\_  
Superintendent (In his/her official capacity only)      Date \_\_\_\_\_

And by \_\_\_\_\_  
Treasurer (In his/her official capacity only)      Date \_\_\_\_\_

\*This Agreement has no legal effect absent Board action

BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT BOARD OF  
EDUCATION:

By \_\_\_\_\_  
President (In his/her official capacity only)      Date \_\_\_\_\_

And by \_\_\_\_\_  
Superintendent (In his/her official capacity only)      Date \_\_\_\_\_

And by \_\_\_\_\_  
Treasurer (In his/her official capacity only)      Date \_\_\_\_\_

\*This Agreement has no legal effect absent Board action



**R.C. 5705.41 and R.C. 5705.412 Certificate**

We certify that the Board has in effect for the remainder of the fiscal year and succeeding fiscal years the authorization to levy taxes including the renewal or replacement of existing levies, which when combined with the estimated revenues from all other sources available to the district at the time of certification, are sufficient to provide operating revenues necessary to enable the Board to maintain all personnel and programs for all the days set forth in its adopted school calendars for the current fiscal year and for a number of days in succeeding fiscal years equal to the number of days instruction was held or is scheduled for the current fiscal year. We additionally certify that the amount required to meet the obligation of the fiscal year in which the attached contract is made has been lawfully appropriated for such purpose and is in the treasury or in the process of collection to the credit of an appropriate fund free from any previous encumbrances.

MADISON LOCAL SCHOOL DISTRICT BOARD OF EDUCATION:

|                    |                         |                          |
|--------------------|-------------------------|--------------------------|
| _____<br>Treasurer | _____<br>Superintendent | _____<br>Board President |
| _____<br>Date      | _____<br>Date           | _____<br>Date            |

BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT BOARD OF EDUCATION:

|                    |                         |                          |
|--------------------|-------------------------|--------------------------|
| _____<br>Treasurer | _____<br>Superintendent | _____<br>Board President |
| _____<br>Date      | _____<br>Date           | _____<br>Date            |

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